

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: February 19, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SECOND AMENDED SCHEDULING ORDER

On February 5, 2025, Complainant Peloton Interactive, Inc., filed a Second Motion for Extension of the Scheduling Order (“Motion to Extend”), seeking to extend discovery due to the large volume of documents exchanged between the parties and the need for adequate time to review them prior to taking depositions. Respondent Flexport International LLC filed a response to the Motion to Extend on February 6, 2025, consenting to the request for an extension of time but denying other issues raised in Complainant’s motion. Pursuant to a February 18, 2025 email request from the parties, a video status conference was held on February 19, 2025, to discuss the Motion to Extend and the parties’ plan to engage in mediation.

Complainant seeks to extend all existing deadlines by seven weeks. While some extension of time is reasonable for the parties to continue preparing for depositions and to engage in mediation, a seven week extension is not warranted. Accordingly, the parties are **ORDERED** to follow the amended schedule set forth below, which includes a joint status report to describe the status of mediation, but not the parties’ positions, and the progress of depositions:

March 11, 2025	Joint Status Report Due
March 28, 2025	Complete Fact Depositions
April 2, 2025	Expert Discovery Begins
April 21, 2025	Expert Reports Due
May 5, 2025	Responses to Expert Reports Due
May 19, 2025	Expert Depositions Completed
May 19, 2025	Completion of all Discovery
June 16, 2025	Complainant’s initial brief, proposed findings of fact, and appendix

July 14, 2025

Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix

July 28, 2025

Complainant's reply brief and responses to proposed findings of fact

Both parties have filed motions to compel and responses to those motions. As was discussed during the video conference, the parties should attempt to narrow the discovery issues raised in their respective motions. A status conference will be held at a later date to discuss and try to resolve any remaining discovery issues.



Linda S. Harris Crovella
Administrative Law Judge